RECALLING Article 28(b) of the Convention on the International Maritime Organization con cerning the functions of the Committee, NOTING resolution MSC.88(71), by which it adopte d the International Code for the Safe Carriage of Packaged Irradiated Nuclear Fuel, Plut onium and High-Level Radioactive Wastes on Board Ships (hereinafter referred to as ■the INF Code■), which has become mandatory under chapter VII of the International Convention fo r the Safety of Life at Sea (SOLAS), 1974, (hereinafter referred to as ■the Conventio n■), NOTING ALSO article VIII(b) and regulation VII/14.1 of the Convention concerning th e procedure for amending the INF Code, - (hereinafter referred to as ■the Convention■), NOTING ALSO article VIII(b) and regulation VII/14.1 of the Convention concerning the pro cedure for amending the INF Code, RECOGNIZING the need to amend the INF Code to align it with the amendments to chapter VII of the Convention adopted by resolution MSC.123(75), HAVING CONSIDERED, at its seventy-sixt h session, amendments to the INF Code proposed an d circulated in accordance with article VIII(b)(i) of the Convention, 1.

ADOPTS, in accordance with article VIII(b)(iv) of the Convention, amendments to the INF Code, the text of which is set out in the Annex to the present resolution; 2.

DETERMINES, in accordance with article VII I(b)(vi)(2)(bb) of the Convention, that the a mendments shall be deemed to have been accepted on 1 January 2004 unless, prior to that date, more than one third of the Contracting Go vernments to the Convention or Contracti ng Governments the combined merchant fleets of wh ich constitute not less than 50% of th e gross tonnage of the world■s merchant fleet, have notified their objections to the ame ndments; - Governments the combined merchant fleets of wh ich constitute not less than 5 0% of the gross tonnage of the world■s merchant fleet, have notified their objections to the amendments; 3.

INVITES Contracting Governments to note that , in accordance with article VIII(b)(vii)(2) of the Convention, the amendments shall enter into force on 1 July 2004 upon their acc eptance in accordance with paragraph 2 above; 4.

REQUESTS the Secretary-General, in c onformity with article VIII(b)(v) of the Convention , to transmit certified copies of the present resolution and the text of the amendments contained in the Annex to all Contracting Governments to the Convention; 5.

FURTHER REQUESTS the Secret ary-General to transmit copies of this resolution and its An nex to Members of the Organization, wh ich are not Contracting Governments to the Conven tion.